

Case No. 2:25-CV-00405-RMG-MGB

Under Rule 26(c), the Court may issue a protective order to shield a party from annoyance, embarrassment, oppression, or undue burden or expense, including by limiting the scope of discovery or forbidding certain disclosures. Rule 45(d) similarly requires courts to quash or modify subpoenas that require disclosure of privileged or protected matter or impose an undue burden.

While a plaintiff who seeks emotional distress damages may, in limited circumstances, place certain aspects of her mental condition at issue, courts routinely hold that such an implied waiver is **not unlimited**. Discovery must remain proportional and confined to records **directly related** to the alleged emotional distress caused by the defendant's conduct.

IV. ARGUMENT

A. Defendants' Subpoena(s) Seek Wholesale Disclosure and Must Be Quashed

The subpoena(s) at issue seek broad categories of medical and psychotherapy records without temporal or subject-matter limitation. Such requests amount to a fishing expedition into Plaintiff's entire medical history and are neither proportional nor justified.

Plaintiff does not waive her psychotherapy privilege or medical privacy wholesale by asserting emotional distress. Any implied waiver, if found, extends only to information **directly relevant** to the emotional distress allegedly caused by Defendants' conduct in this case.

B. Any Discovery Must Be Narrowly Tailored and Court-Controlled

If the Court determines that some discovery of mental-health-related information is appropriate, Plaintiff respectfully requests that:

1. Any disclosure be limited to records **directly relating to emotional distress allegedly caused by Defendants' conduct**;
2. The scope be restricted to a **defined and reasonable time period** tied to the alleged misconduct;
3. Records concerning pre-existing, unrelated, or wholly separate conditions be excluded;
4. Any materials be reviewed **in camera** prior to disclosure;
5. Any production occur **through Plaintiff**, not by direct subpoena to providers;
6. All materials be subject to a **confidentiality or attorneys'-eyes-only designation**;
7. Defendants be prohibited from ex parte contact with Plaintiff's healthcare providers.

Case No. 2:25-CV-00405-RMG-MGB

These safeguards are necessary to protect Plaintiff's privacy while allowing only that discovery which is strictly relevant and proportional.

C. Defendants' Conduct Warrants Immediate Protective Relief

Absent Court intervention, Plaintiff faces irreparable harm through disclosure of sensitive medical information that is irrelevant to the issues to be tried. Once disclosed, such harm cannot be undone. Emergency relief is therefore warranted.

V. REQUEST FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that the Court enter an Order as follows:

1. **Quash any third-party or overbroad subpoena(s)** directed to Plaintiff's medical or psychotherapy providers, including the subpoena at issue, and prohibit Defendants from obtaining Plaintiff's medical or psychotherapy records through direct subpoenas to healthcare providers;
2. **Order that any discovery related to Plaintiff's emotional distress**, if permitted at all, proceed only through a **court-approved, narrowly tailored process**, limited in scope and time, and directly related to emotional distress allegedly caused by Defendants' conduct in this action;
3. **Require that any such materials be submitted for in camera review** by the Court prior to any disclosure to Defendants;
4. **Direct that any production occur only through Plaintiff**, and not by ex parte contact or subpoena to third-party healthcare providers;
5. **Enter a confidentiality and/or attorneys'-eyes-only protective order** governing any materials the Court permits to be disclosed;
6. **Prohibit Defendants from ex parte communications** with Plaintiff's healthcare providers;
7. Grant such other and further relief as the Court deems just and proper.

Respectfully submitted 18th of December, 2025,


Debra Nelson
Plaintiff, Pro Se



EXHIBIT A

AO 88B (Rev. 02/14) Subpoena to Produce Documents, Information, or Objects or to Permit Inspection of Premises in a Civil Action

UNITED STATES DISTRICT COURT

for the

District of South Carolina

Debra Nelson

*Plaintiff*Curtiss Weight Electro Mechanical Corp. d/b/a
Curtiss-Wright Steam and Air Solutions et. al.*Defendant*

Civil Action No. 2:25-CV-00405-RMG-MGB

**SUBPOENA TO PRODUCE DOCUMENTS, INFORMATION, OR OBJECTS
OR TO PERMIT INSPECTION OF PREMISES IN A CIVIL ACTION**

Sue E. Shealy, LISW-CP

To:

(Name of person to whom this subpoena is directed)

☒ **Production: YOU ARE COMMANDED** to produce at the time, date, and place set forth below the following documents, electronically stored information, or objects, and to permit inspection, copying, testing, or sampling of the material:

See attached Exhibit A

Place:	Date and Time: 10/31/2025 12:26 am
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☐ **Inspection of Premises: YOU ARE COMMANDED** to permit entry onto the designated premises, land, or other property possessed or controlled by you at the time, date, and location set forth below, so that the requesting party may inspect, measure, survey, photograph, test, or sample the property or any designated object or operation on it.

Place:	Date and Time:
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The following provisions of Fed. R. Civ. P. 45 are attached – Rule 45(c), relating to the place of compliance; Rule 45(d), relating to your protection as a person subject to a subpoena; and Rule 45(e) and (g), relating to your duty to respond to this subpoena and the potential consequences of not doing so.

Date: _____

CLERK OF COURT

OR

/s/ T. Chase Samples

Signature of Clerk or Deputy Clerk

Attorney's signature

The name, address, e-mail address, and telephone number of the attorney representing (name of party) Curtiss-Wright Steam and Air Solutions et. al., who issues or requests this subpoena, are:
T. Chase Samples; 15 South Main Street, STE 700, Greenville, SC 29601; chase.samples@jacksonlewis.com;
864-672-8034

Notice to the person who issues or requests this subpoena

If this subpoena commands the production of documents, electronically stored information, or tangible things or the inspection of premises before trial, a notice and a copy of the subpoena must be served on each party in this case before it is served on the person to whom it is directed. Fed. R. Civ. P. 45(a)(4).

EXHIBIT B

JacksonLewis

Jackson Lewis P.C.
15 South Main Street, Suite 700
Greenville SC 29601
(864) 232-7000 Direct
(864) 235-1381 Fax
jacksonlewis.com

VIA CERTIFIED MAIL, RETURN RECEIPT REQUESTED

October 31, 2025

Sue E. Shealy, LISW-CP
7 Gamecock Ave, Suite 710
Charleston, SC 29407

Re: Debra Nelson vs. Curtiss Wright Electro Mechanical Corp. d/b/a Curtiss-Wright Steam
and Air Solutions, Stephanie Lanier, and Shane Sablotsky
U.S. District Court for the District of South Carolina, Charleston Division
Civil Action No. 2:25-CV-00405-RMG-MGB
Psychotherapy Records regarding Debra Nelson

Dear Ms. Shealy:

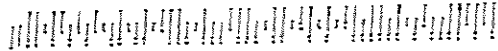
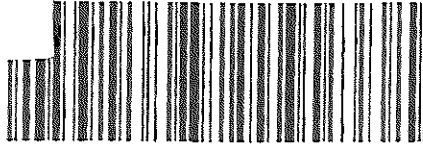
Our firm represents Defendants Curtiss-Wright Steam and Air Solutions, Stephanie Lanier, and Shan Sablotsky in the above-referenced lawsuit. Enclosed is a subpoena requesting that your office send us a copy of any and all documents and materials relating to the psychotherapy records of Plaintiff Debra Nelson ([REDACTED]). In lieu of your having to appear in person to produce the records, we will accept a mailed copy of your records by November 20, 2025.

Also enclosed is a Records Certificate of Authority that you or your designee will need to complete and sign. Please return the original signed certificate to us along with the records that it supports. This Certificate may be filed with the court; therefore, you should keep a copy for your files. We will accept and process an invoice for reasonable and customary copying and mailing charges.

If you have any questions, please do not hesitate to contact us. Thank you in advance for your assistance with this matter.

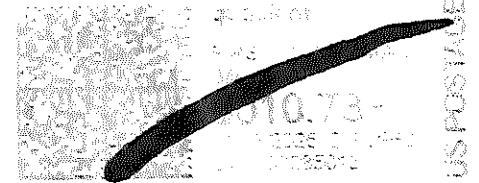
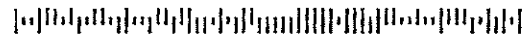
EXHIBIT C

bles
P.C.
eet, Suite 70
C 29601

**CERTIFIED MAIL**

9414 7266 9904 2155 9754 67

RETURN RECEIPT REQUESTED

*SC
11-4**710**LN
12/14/25*

Sue E. Shealy, LISW-CP
7 Gamecock Ave, Suite 710
Charleston, SC 29407

Case No. 2:25-CV-00405-RMG-MGB

CERTIFICATE OF SERVICE

I hereby certify that on this 18th day of December, 2025, I served a true and correct copy of the foregoing **Plaintiff's Emergency Motion To Quash Subpoena and for Protective Order** by email addressed to:

T. Chase Samples, Esq.

chase.samples@jacksonlewis.com

Joseph V. Valenza, Esq.

joseph.valenza@jacksonlewis.com

Respectfully submitted 18th of December, 2025,


Debra Nelson
Plaintiff, Pro Se



Exhibits List

- Exhibit A: Defendants' Rule 45 Subpoena to Sue E. Shealy, LISW-CP (AO 88B), dated October 31, 2025
- Exhibit B: Jackson Lewis cover letter transmitting subpoena and requesting psychotherapy records
- Exhibit C: Certified-mail envelope and USPS tracking confirming mailing on November 3, 2025